

STATE OF NEW YORK

3244--C

2025-2026 Regular Sessions

IN ASSEMBLY

January 27, 2025

Introduced by M. of A. WOERNER, ANGELINO, MAGNARELLI, DeSTEFANO, LUPARDO, SIMON, PAULIN, LUNSFORD, SEAWRIGHT, GLICK, BICHOTTE HERMELYN, RAGA, ROMERO, STECK, BAILEY, BUTTENSCHON, McDONALD, MEEKS, GRAY -- read once and referred to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Higher Education in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to requirements for licensure as a dentist

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 4 of section 6605 of the education law, as
2 amended by chapter 57 of the laws of 1999, is amended and two new subdivisions 2-a and 6 are added to read as follows:

3
4 2-a. (a) On recommendation of the board, the department may issue a
5 limited permit to a foreign trained dentist to be employed as a general
6 practice dental preceptee in a federally qualified health center or
7 look-alike health center located in a rural or partially-rural designated
8 federal dental health professions shortage area to practice
9 dentistry as defined in this article while under the supervision and
10 training of a licensed preceptor dentist, provided that such practice
11 shall be limited to the premises of such federally qualified health
12 center or look-alike health center and such other premises as may be
13 used by such centers. No such permit shall be issued or renewed unless
14 such dentist has a bona fide offer of a position in a federally qualified
15 health center or look-alike health center.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD06285-10-6

(b) As used in this subdivision, the following terms shall have the following meanings:

(i) "Foreign trained dentist" shall mean an individual who:

(1) has graduated with a degree, diploma or certificate from a foreign dental school which is recognized by the appropriate civil authorities in the jurisdiction in which such school is located as acceptable for entry into practice in such jurisdiction and such school is not accredited by an organization accepted by the department as a reliable authority, such as the commission on dental accreditation, for the purposes of accrediting such programs;

(2) is licensed to practice dentistry in the jurisdiction in which the school from which such individual graduated is located;

(3) has successfully completed a nationally-recognized competency examination satisfactory to the commissioner;

(4) passes an examination demonstrating English proficiency satisfactory to the commissioner; and

(5) obtains validation of their dental degree, diploma or certificate for national equivalency by a credential evaluation service satisfactory to the commissioner.

(ii) "Licensed preceptor dentist" shall mean a dentist licensed in this state who has at least five years of general practice dental experience. No licensed preceptor dentist shall supervise more than two general practice dental preceptees at one time.

(iii) "Look-alike health center" shall mean a health center that meets all federal requirements for a federally qualified health center but does not receive baseline operational funding through a section 330 grant pursuant to section 330 of the federal public health service act, 42 U.S.C. § 256b.

4. A limited permit under this section shall be valid for one year or until ten days after notification of denial of an application for license. A limited permit may be renewed for one year, except if the applicant is serving in a residency program in a hospital or school of dentistry in this state or as a general practice dental preceptee in a federally qualified health center or look-alike health center in accordance with subdivision two-a of this section. A limited permit may be renewed annually for the duration of such residency program or general practice dental preceptee program. The fee for each limited permit and for each renewal shall be one hundred five dollars.

6. A foreign trained dentist who successfully completes seven years of practice in accordance with the provisions of subdivision two-a of this section shall be deemed eligible to apply for licensure as a dentist in this state. For purposes of this section, such a dentist shall be credited with two years of the seven-year practice requirement for each full year successfully completed in an approved general practice residency program, provided that such dentist may not be credited with more than four years of the seven-year practice requirement based upon successfully completing multiple years in any such residency program.

§ 2. Subdivisions 2, 3 and 6 of section 6604 of the education law, subdivision 2 as added by chapter 987 of the laws of 1971, subdivision 3 as amended by chapter 613 of the laws of 2022 and subdivision 6 as amended by chapter 669 of the laws of 2022, are amended to read as follows:

(2) Education: have received an education, including a doctoral degree in dentistry, in accordance with the commissioner's regulations, or has complied with clauses one and two of of subparagraph (i) of paragraph (b) of subdivision two-a of section sixty-six hundred five of this arti-

1 cle as a pre-condition for participation in a general practice dental
2 preceptee program;

3 (3) Experience: have experience satisfactory to the board and in
4 accordance with the commissioner's regulations, provided that such expe-
5 rience shall consist of (i) satisfactory completion of a postdoctoral
6 general practice or specialty dental residency program, of at least one
7 year's duration, in a hospital or dental facility accredited for teach-
8 ing purposes by a national accrediting body approved by the department,
9 (ii) satisfactory completion of at least seven years practicing as a
10 general practice dental preceptee in accordance with subdivision two-a
11 of section sixty-six hundred five of this article, or (iii) satisfactory
12 completion of at least seven years practicing as a full-time faculty
13 member with a focus in general dentistry in accordance with section
14 sixty-six hundred four-b of this article, provided, further that any
15 such residency program, general practice dental preceptee program, or
16 faculty employment shall include a formal outcome assessment evaluation
17 of the resident's or dentist's competence to practice dentistry accepta-
18 ble to the department;

19 (6) Citizenship or immigration status: be a United States citizen or a
20 noncitizen lawfully admitted for permanent residence in the United
21 States; provided, however, that the board of regents may grant a three
22 year waiver for a noncitizen to practice in an area which has been
23 designated a federal dental health professions shortage area, except
24 that the board of regents may grant an additional extension not to
25 exceed six years to a noncitizen to enable ~~him or her~~ such noncitizen
26 to secure citizenship or permanent resident status, provided such status
27 is being actively pursued; and provided further that the board of
28 regents may grant an additional three-year waiver, and at its expira-
29 tion, an extension for a period not to exceed six additional years, for
30 the holder of an H-1b visa, an O-1 visa, or an equivalent or successor
31 visa thereto;

32 § 3. Section 6604-b of the education law is amended by adding a new
33 subdivision 8 to read as follows:

34 8. The holder of a restricted dental faculty license who successfully
35 completes seven years of employment as a full-time faculty member with a
36 focus in general dentistry in accordance with this section shall be
37 deemed in compliance with subdivision two-a of section sixty-six hundred
38 five of this article and shall be eligible to apply for licensure as a
39 dentist in this state.

40 § 4. This act shall take effect on the ninetieth day after it shall
41 have become a law. Effective immediately, the addition, amendment and/or
42 repeal of any rule or regulation necessary for the implementation of
43 this act on its effective date are authorized to be made and completed
44 on or before such effective date.